



UC San Diego Contract Addendum

This contract addendum ("Contract Addendum") sets forth the additional terms and conditions incorporated into and made a part of the _____ [insert event name] with contract # _____ dated as of _____ ("Venue/Event Services Contract") by and between The Regents of The University of California, a California public corporation ("UC") on behalf of the University of California, San Diego, and _____ ("Supplier"). This Contract Addendum and the Venue/Event Services Contract may be referred to collectively from time to time as the "Agreement." All capitalized terms not otherwise defined herein shall have the meanings set forth in the Venue/Event Services Contract.

1. Venue/Event Services Contract

This Contract Addendum shall apply to all Venue/Event Services Contracts where UC has engaged Supplier to provide venue space, goods and/or services (collectively, "Services") for a specific event ("Event"). Such Services may include, but may not be limited to, room blocks, venue rentals, and/or ancillary services (e.g., catering services, bar services, and any audio-visual needs). Supplier agrees to provide the Services listed in the Venue/Event Services Contract (including any attachments thereto), and any other documents referenced therein. Unless otherwise provided in the Agreement, UC will not be obligated to purchase a minimum amount of Services from Supplier.

2. Payment Terms

UC's maximum prepay deposit shall be as set forth in the Venue/Event Services Contract, but in no event more than 50% of the total expected minimum charges. Payment terms are Net 30 days after receipt of final invoice, if not paid on the last day of the Event. UC cannot accept the assessment of late fees/penalties by Supplier. Signed contract represents UC's agreement to pay all agreed upon charges. Any and all charges to the UC payment card require prior written approval by UC before processing.

3. Cancellation Policy

- a. Refunds: For any cancellations which occur 150 days or more prior to the first date of the Event, Supplier shall refund 100% of any and all deposits or payments made by UC. Other terms as listed in the Venue/Event Services Contract.
- b. Resell: Supplier shall use commercially reasonable efforts to mitigate any loss or damages, including, but not limited to, reselling any rooms/spaces released by UC through attrition or cancellation, if applicable. If such released rooms/spaces, minus allowed attrition, are resold by Hotel on a last-room-sold basis, UC will be credited for any revenue derived over the Event date(s), which shall be applied towards any cancellation or attrition fees which may become due under the Venue/Event Services Contract. Upon request, Supplier agrees to provide detailed and accurate documentation which substantiates its occupancy over the Event date(s).

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4. Covid-19 Pandemic; Other Public Health and/or Safety Events

The parties hereby acknowledge and agree that in connection with the Covid-19 pandemic (including its variants) and all other public health and/or safety events: (a) “stay-at-home” and/or other types of orders may be issued by local, state and/or federal authorities (collectively “Orders”); (b) there have been or may be a number of local, state, and national guidelines issued by the Centers for Disease Control (“CDC”), the World Health Organization (“WHO”) and other guidelines, as well as UC guidance related to Covid-19 (including its variants) and other public health and/or safety events (collectively, “Public Health Guidance”); and (c) such Orders and/or Public Health Guidance (which may, among other things, recommend or require the restriction of or prohibition against individuals’ movements and/or group gatherings) may remain in effect, be reinstated (if earlier rescinded or cancelled), or become effective on or after any cut-off dates or other cancellation deadlines set forth in the Agreement. Accordingly, the parties hereby expressly agree that if the Orders and/or Public Health Guidance are expected to remain in effect, be reinstated or should become effective on or after any cut-off dates or other cancellation deadlines set forth in the Agreement, in addition to any other rights or remedies hereunder, UC shall: 1) have the right to terminate the Agreement without any cost, expense, liability or further obligations hereunder (including, but not limited to, the payment of any liquidated damages), and 2) be entitled to receive a full refund of any and all deposits, “non-refundable” payments and other monies paid to Supplier hereunder. In the event Supplier terminates the Agreement in connection with the Orders and/or Public Health Guidance, Supplier shall promptly refund in full all deposits, “non-refundable” payments and other monies paid to Supplier by UC hereunder. In either case, Supplier shall send all such refunds to UC within ten (10) business days of UC’s written request. The parties agree that in the event of a conflict between this provision and any other term or provision contained in the Agreement, this provision shall govern.

5. Damages to Supplier Property

Without waiving any rights, remedies or defenses, UC agrees to be responsible for direct, actual and out-of-pocket costs or expenses incurred by Supplier and arising from the Event, but only in proportion to and to the extent that such costs or expenses arises from the negligent acts or omissions of UC, its agents, employees, invitees, or guests. UC shall not be required to pay for any minor damage which customarily occurs during events (e.g., broken glasses, tableware) or which is otherwise covered by any deposit or other pre-paid amounts.

6. Damages to UC Materials

Supplier assumes liability for any materials UC furnishes to Supplier in connection with the Agreement and Supplier agrees to pay for any UC materials Supplier damages or otherwise is not able to account for to UC's satisfaction. UC furnishing to Supplier any materials in connection with the Agreement will not, unless otherwise expressly provided in writing by UC, be construed to vest title thereto in Supplier.

7. Publicity

Any and all photographs, recordings or other depictions of the Event must be approved in writing by UC and written permission must be obtained from any Event attendees whose name, image, voice or likeness is contained therein, prior to any use thereof.

8. Insurance

UC maintains a program of self-insurance. Details may be found here: https://www.ucop.edu/risk-services-insurance/_files/uc-certificate-of-self-insurance-fy-24-25.pdf.

Vendor agrees to carry and maintain comprehensive general liability insurance and other insurance in amounts sufficient for coverage against claims arising from its activities under this Agreement. Vendor agrees to provide UC with evidence of such insurance upon written request.

9. Third-Party Vendors; Liability and Insurance

Notwithstanding anything to the contrary contained in the Agreement, all third-party vendors participating in the Event shall be solely responsible for their own activities at or in connection with the Event. All third-party vendors are required to secure and provide evidence of insurance to the Supplier. The Supplier shall be responsible for securing proof of adequate insurance from all third-party vendors attending or participating in the Event.

10. Release; Waiver; Special Damages

Supplier acknowledges and agrees that UC cannot accept a complete release of liability in connection with the Event and cannot waive all of its rights, remedies or defenses. Any release or waiver of claims included in the Agreement shall not operate to release Supplier from liability for its own negligent or intentional acts or omissions, or for areas where such a release is prohibited by law.

Neither party shall be liable for special, incidental, exemplary, or consequential damages suffered or incurred by the other party including, but not limited to, loss of anticipated revenue, interest, loss of use or other such claims arising from any causes whatsoever, whether or not such loss or damage is based on contract, warranty, tort (including negligence), indemnity, or otherwise. The foregoing limitation will not apply in connection with a claim made against any of the parties hereto by a third party, provided that such claim is within the scope of the indemnity obligations of the applicable party under the Agreement. It is agreed that a party's insurance policy limit(s) shall not act as a limitation upon the amount of indemnification to be provided by such party.

11. Assignment and Subcontracting

Except as to any payment due hereunder, Supplier may not assign, delegate or subcontract the Agreement (or any portion thereof) without UC's prior written consent. In case such consent is given, Supplier shall ensure that the permitted assignee or subcontractor is subject to and bound by all of the terms and conditions of the Agreement.

12. Intellectual Property, Copyright and Patents

Supplier will not use the UC name, abbreviation of the UC name, trade names and/or trademarks (i.e., logos and seals) or any derivation thereof, in any form or manner in advertisements, reports, or other information released to the public, or place the UC name, abbreviations, trade names and/or trademarks or any derivation thereof on any consumer goods, products, or services for sale or distribution to the public, without UC's prior written approval. Supplier shall at all times comply with California Education Code Section 92000.

13. Mutual Indemnity

UC will defend, indemnify, and hold harmless Supplier, its officers, employees, and agents, from and against all costs, losses, expenses (including, without limitation, reasonable attorneys' fees and costs), damages, and liabilities of any kind suffered or incurred by Supplier in connection with a claim or action asserted by a third party (collectively, "Supplier Third-Party Claims") resulting from or arising out of UC's performance under the Agreement, but only in proportion to and to the extent that any such Supplier Third-Party Claim results from the negligent or intentional acts or omissions of UC, its officers, employees, or agents. Supplier agrees to provide UC with prompt written notice of any such Supplier Third-Party Claim and to permit UC to defend any Supplier Third-Party Claims. Supplier will cooperate fully in any such defense. Supplier shall have the right to participate in its defense at its sole cost and expense.

Supplier will defend, indemnify, and hold harmless UC, its officers, employees, and agents, from and against all costs, losses, expenses (including, without limitation, reasonable attorneys' fees and costs), damages, and liabilities of any kind suffered or incurred by UC in connection with a claim or action asserted by a third party (collectively, "UC Third-Party Claims") resulting from or arising out of Supplier's performance under the Agreement, but only in proportion to and to the extent that any such UC Third-Party Claim results from the negligent or intentional acts or omissions of Supplier, its officers,

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employees, or agents. UC agrees to provide Supplier with prompt written notice of any such UC Third-Party Claim and to permit Supplier to defend any UC Third-Party Claims. UC will cooperate fully in any such defense. UC shall have the right to participate in its defense at its sole cost and expense.

14. Dispute Resolution and Attorneys' Fees

In the event of a dispute arising under the Agreement, the parties agree that the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs incurred in connection therewith. As a taxpayer-funded state entity, UC cannot agree to a waiver of its basic right to a jury trial. Except as provided in this Section, UC shall not be responsible for the payment of any attorneys' fees or costs associated with any efforts by Supplier to collect any monies purportedly owed by UC or to otherwise enforce the terms of the Agreement.

15. Governing Law

The Agreement shall be construed in accordance with and governed by the laws of the State of California, excluding its conflict of laws principles. The exclusive jurisdiction and venue for any and all actions arising out of or brought under the Agreement is in a state court of competent jurisdiction situated in San Diego County, California.

16. Compliance with Law

The Agreement is subject to all applicable federal, state, and local laws, including, but not limited to, health and safety codes, alcoholic beverage control laws, disability laws, federal anti-terrorism laws and regulations. Supplier and UC shall comply with all such laws with respect to their respective obligations and activities hereunder.

17. Order of Precedence

The Agreement is comprised of the following documents, listed in the order of precedence:

- a. Contract Addendum
- b. Venue/Event Services Contract
- c. UC Terms and Conditions of Purchase (rev. 4/1/25)
<https://procurement.ucop.edu/resources/p-policies>

18. Notices

Any notice required or permitted under the Agreement must be in writing. Notice must be sent by electronic transmission, certified or registered mail, return receipt requested, or by a recognized overnight courier service with provision for a receipt. Additionally, notices by Email will be considered legal notices if such communications include the following text in the Subject field: FORMAL LEGAL NOTICE - [insert, as the case may be, Supplier's name or University of California]. Notices shall be deemed effective as of the date successfully transmitted via email or shown on the receipt, as applicable.

19. General Provisions

- a. **Entire Agreement:** This Contract Addendum (including all incorporated documents) constitutes the entire agreement between the parties concerning the subject matter set forth herein and supersedes all prior and contemporaneous agreements and understandings, whether written or oral, relating thereto. In the event of any conflict between the terms of this Contract Addendum and the terms of any Venue/Event Services Contract, the terms of this Contract Addendum shall govern.
- b. **Amendments:** No amendment or modification of the Agreement shall be valid or binding unless made in writing and signed by both parties hereto.

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- c. Changes: Any changes, additions, stipulations, or deletions, including corrective lining out by either UC or Supplier, will not be considered agreed to or binding on the other party unless such modifications have been initialed or otherwise approved in writing by such party.

The Agreement is binding only if it is negotiated and executed by an authorized representative with the proper delegation of authority.

**THE REGENTS OF THE
UNIVERSITY OF CALIFORNIA**

SUPPLIER

(Signature)

(Signature)

(Printed Name, Title)

(Printed Name, Title)

(Date)

(Date)